

20STCV31115 20STCV31115

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Case Number: 20STCV31115 Hearing Date: July 9, 2026 Dept: 506

SUPERIOR
COURT OF THE STATE OF CALIFORNIA

FOR THE
COUNTY OF LOS ANGELES - CENTRAL DISTRICT

PAULA GREEN,

Plaintiff,

vs.

DOUGLAS EMMETT MANAGEMENT, LLC,

Defendant.

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CASE NO.: 20STCV31115

[TENTATIVE] ORDER DENYING MOTION TO VACATE
JUDGMENT

Dept. 506

8:30 a.m.

July 9, 2026

On June 1, 2026, Larry J. Caldwell
filed a motion to vacate the judgment against him on the cross-complaint “on the
grounds that the Court lacked jurisdiction to render a Judgment based on the fact
that there was no statutorily authorized Cross-Complaint before the Court. The purported Cross-Complaint did not comply
with
Code of Civil Procedure section 428.10 because it did not contain at least one cause
of action by at least one of the Defendants.”

BASIC
PROCEDURAL HISTORY

On
August 17, 2020, Paula Green filed this action for breach of lease based on habitability
issues. Ultimately, she amended her allegations
and filed a Third Amended Complaint (“TAC”) on November 29, 2021.

On
January 24, 2024, Douglas Emmett Management LLC (“Douglas Emmett”), Barrington Pacific
LLC (“Barrington Pacific”), and ESIS Inc. (“ESIS”) filed a cross-complaint against

Paula Green and Larry J. Caldwell based on breach of a tentative settlement agreement for the TAC and Green's and Caldwell's wrongful retention of the \$275,000 settlement payment. This was eventually amended to a Second Amended Cross-Complaint ("SACC") on September 23, 2024, alleging (1) declaratory relief; (2) conversion; (3) unjust enrichment; (4) fraudulent transfer; (5) constructive fraudulent transfer; (6) breach of fiduciary duty; and (7) money had and received.

During trial, on June 30, 2025, the Court granted a motion for directed verdict against Caldwell on the SACC "in connection to the principal amount of \$275,000.00 and any pre-judgment interest from the date the funds were transferred into Mr. Caldwell's business account." The Court also granted an oral motion to add Indemnity Insurance Company of America ("Indemnity Insurance") as a cross-complainant as the underlying insurance policy holder.

On July 3, 2025, a jury returned a verdict awarding an additional \$175,000.00 in consequential damages to ESIS and Indemnity Insurance. The parties stipulated to \$300,000.00 in punitive damages.

The Court entered judgment on September 16, 2025: "Indemnity Insurance of North America is entitled to \$275,000.00 + interest from September 2022 at the legal rate of 10%; \$175,000.00 in consequential damages for attorney's fees and costs from September 2022 to the present; and \$300,000.00 for punitive damages as against Larry J. Caldwell, for a total monetary judgment of \$750,000.00 + interest." On November 12, 2025, the Court entered an amended judgment to correct the name of Indemnity Insurance.

Caldwell appealed, and on February 2, 2026, the Court dismissed his appeals because he was in default.

DISCUSSION

Caldwell brings his motion under Code of Civil Procedure section 473, subdivision (d), arguing that the judgment against him is void.

A. The Motion Is Untimely Because the Judgment is Not Void on Its Face.

“A

trial court has no statutory power under section 473, subdivision (d) to set aside a judgment that is not void: Once six months have elapsed since the entry of a judgment, ‘a trial court may grant a motion to set aside that judgment as void only if the judgment is void on its face.’” (Cruz v. Fagor America, Inc. (2007) 146 Cal.App.4th 488, 495-496.)

A

judgment is void on its face when the invalidity is apparent upon an inspection of the judgment-roll or the court record without consideration of extrinsic evidence. (People v. The North River Ins. Co. (2020) 48 Cal.App.5th 226, 233; [quoting Dill v. Berquist Construction Co. (1994) 24 Cal.App.4th 1426, 1441; Pittman v. Beck Park Apartments Ltd. (2018) 20 Cal.App.5th 1009, 1021].) “A judgment is ‘void’ only when the court entering that judgment ‘lack[ed] jurisdiction in a fundamental sense’ due to the “‘entire absence of power to hear or determine the case’” resulting from the “‘absence of authority over the subject matter or the parties.’” [Citations.]” (Ibid.)

Caldwell

argues that this Court lacked jurisdiction because “there was no statutorily authorized Cross-Complaint before the Court.” (Motion at p. 2.) The Court rejects this argument, as explained below.

Because

this Court did have jurisdiction to grant relief and enter judgment, the judgment is not void on its face. Accordingly, Caldwell’s motion—filed more than six months after entry of the judgment and amended judgment—is untimely, and the Court has no power to grant the requested relief under section 473.

B. The Judgment On the SACC Is Not Void.

Caldwell

contends that only Barrington Pacific LLC and Douglas Emmett Management LLC, as Defendants on the TAC, are the only parties who had a right to bring a cross-complaint. (Motion at p. 11.) ESIS and Indemnity Insurance “did not have the right to bring a Cross-Complaint because they were not a ‘a party against whom a cause of action has been asserted in a complaint or cross-complaint.’” (Id. at p. 11.)

Caldwell

further summarizes his arguments as follows: “The fatal defect in the Cross-Complaint was that the only real party in interest with an actual cause of action against Paula Green or Larry Caldwell was not a Defendant. This fatal defect could not be fixed by substituting Indemnity Insurance in. [¶] That means there never was a Cross-Complaint legally before the Court at any time during the case, and in particular, when the Court rendered Judgment. [¶] The absence of an authorized Cross-Complaint meant that the relief sought against Larry Caldwell was not contained in a pleading authorized by the Code of Civil Procedure. [¶] Since the relief was being sought outside of an authorized pleading, the Court did not have jurisdiction to grant any relief in the Cross-Complaint, and the Judgment granting that relief is void.” (Motion at p. 18.)

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Court has already addressed a variation of this argument. In his demurrer to the First Amended Cross-Complaint, Caldwell argued that ESIS lacked statutory authorization to bring the FACC because they were previously a non-party. The Court overruled the demurrer on this ground by citing Code of Civil Procedure sections 428.10 and 428.20, and stating: “Douglas Emmett and Barrington Plaza (the original Defendants) filed the FACC against Green (the original Plaintiff) and Caldwell (previously a non-party), which arises from the same controversy. [Citation.] They joined ESIS as a Cross-Complainant under Code of Civil Procedure §428.20 because joinder is permitted under Section 378. [Citation.]” (08/22/2024 Minute Order; see also Opposition at pp. 8-9.)

According

to Caldwell, “following the Court’s Order partially sustaining Green and Caldwell’s First Amended Cross-Complaint, the only cause of action that Defendants [Barrington Pacific and Douglas Emmett] alleged in the Second Amended Cross-Complaint was their purported cause of action for declaratory relief.” (Motion at p. 12; see Reply at pp. 2-3.) In fact, when the Court sustained in part Caldwell’s demurrer to the First Amended Cross-Complaint, it granted Douglas Emmett and Barrington Plaza leave to amend the second through seventh causes of action. Thereafter, Caldwell demurred to only the sixth cause of action for breach of fiduciary duty in the SACC, and the Court overruled that demurrer on May 5, 2025. Consequently, all of the SACC’s claims—not just declaratory relief—by all Cross-Complainants survived pleading challenges and proceeded to trial. And at trial, the Court granted a directed verdict in favor of ESIS and Indemnity Insurance.

Caldwell's

remedy for this Court's perceived mistakes was to appeal and seek a reversal of

the demurrer orders, directed verdict, or other orders. That appeal was dismissed. In sum, the Court agrees that Caldwell's motion

is "a woefully untimely motion for reconsideration" and another attempt to get relief

after his failed appeal. (Opposition at pp.

7-8.)

CONCLUSION

The

motion is DENIED.

Moving

party to give notice.

Parties

who intend to submit on this tentative must send an email to the Court at

indicating intention to submit. If all parties

in the case submit on the tentative ruling, no appearances before the Court are

required unless a companion hearing (for example, a Case Management Conference)

is also on calendar.

Dated this 9th day of July 2026

Hon. Thomas D. Long

Judge of the Superior

Court